

TENTATIVE RULINGS

FOR: August 26, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBIla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. B Zoom

Join by Video

<https://www.zoomgov.com/j/1618700612?pwd=3bjaxoPtjuWe7B7JQWBQ8muwSuMiXC.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Conservatorship of John W. Lafeber

19PR000058

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the case is set for a Review – Biennial hearing in two years, on August 25, 2028, at 8:30 a.m. in Dept. A. The Court Investigator shall

prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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In The Matter of The Allen and Valija Tyler Revocable Trust

26PR000124

PETITION: 1. TO COMPEL TRUSTEE TO ACCOUNT AND PROVIDE INFORMATION; 2. TO INVALIDATE WRONGFUL LOAN DOCUMENTS; 3. TO DETERMINE OWNERSHIP OF TRUST PROPERTY; 4. FOR FINANCIAL ELDER ABUSE; 5. FOR BREACH OF TRUST / FIDUCIARY DUTY; 6. FOR DAMAGES AND SURCHARGE OF TRUSTEE; 7. TO DEEM KIM TYLER PREDECEASED; 8. ALTERNATIVELY, TO APPLY KIM TYLER'S INTEREST AS A BENEFICIARY OF THE TRUST TO THE SATISFACTION OF MONEY JUDGMENT; 9. FOR REMOVAL OF TRUSTEE AND APPOINTMENT OF A SUCCESSOR TRUSTEE; 10. FOR IMMEDIATE SUSPENSION OF TRUSTEE AS AND FOR APPOINTMENT OF AN INTERIM TRUSTEE; 11. TO RESTRAIN TRUSTEE FROM USING TRUST ASSETS TO DEFEND; 12. FOR PRELIMINARY INJUNCTION PREVENTING THE TRUSTEE FROM USING TRUST ASSETS

APPEARANCE REQUIRED. The parties shall attend prepared to discuss whether any additional opposition is anticipated, whether the parties intend to submit on verified pleadings and affidavits (see *Evangelho v. Presoto* (1998) 67 Cal.App.4th 615, 620), whether any discovery or other pre-hearing practice is anticipated, and whether the parties are willing to participate in informal settlement discussions or other alternative dispute resolution proceedings. Should any party desire an evidentiary hearing, the parties shall be prepared to provide the Court with an estimate for the length of the hearing, and to set the hearing on the Court's calendar. Counsel are directed to meet and confer on the foregoing issues prior to the hearing.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

25 Executive, LLC v. Julie Nguyen

25CV002614

MOTION FOR LEAVE TO FILE REVISED SECOND AMENDED CROSS-COMPLAINT
[Filed 7/31/26]

TENTATIVE RULING: The matter is CONTINUED to August 28, 2026 at 8:30 a.m. in Dept. A to coincide with the continued hearing on Cross-Defendants' Demurrer and Motion to Strike Portions of First Amended Cross-Complaint.

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Shahbaz Shahabi v. Shahin Shahabi et al

25CV002685

DEMURRER TO FIRST AMENDED CROSS-COMPLAINT